



CHAPTER 51

An Act to provide for the payment of allowances out of the Industrial Injuries Fund with a view to supplementing workmen's compensation and benefit, and for purposes connected therewith. [5th July, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The persons to whom this Act applies are the following, Persons to whom this Act applies.
namely,—

- (a) any person who is, or has since the commencement of this Act been, entitled in respect of an injury or a disease (other than pneumoconiosis or byssinosis) to weekly payments by way of workmen's compensation and, as a result of that injury or disease, is incapable of work and likely to remain so incapable for a considerable period;
- (b) any person who is, or has since the commencement of this Act been, entitled in respect of pneumoconiosis to weekly payments by way of workmen's compensation, being a person who is certified under a compensation scheme to be totally disabled or with respect to whom it is determined in accordance with regulations to be made by the Minister of Pensions and National Insurance (in this Act referred to as "the Minister"), that he is so disabled;
- (c) any person who is, or has since the commencement of this Act been, entitled in respect of byssinosis to weekly payments by way of workmen's compensation;

- (d) any person who is entitled, in respect of total disablement as a result of a disease to which the Pneumoconiosis and Byssinosis Benefit Act, 1951 (as extended by the Industrial Diseases (Benefit) Act, 1954) applies, to payments by way of weekly allowance under the first-mentioned Act;
 - (e) any person who, as the joint result of two or more injuries or diseases in respect of each of which he is, or has since the commencement of this Act been, entitled to any such payments as are mentioned in the foregoing paragraphs, is incapable of work and likely to remain so incapable for a considerable period.
- (2) For the purposes of this section—
- (a) the expression “workmen’s compensation” means compensation under the Workmen’s Compensation Acts, 1897 and 1900, the Workmen’s Compensation Act, 1906, the Workmen’s Compensation (Silicosis) Act, 1918, the Workmen’s Compensation Acts, 1925 to 1938, or section one of the Workmen’s Compensation and Benefit (Byssinosis) Act, 1940, or under any contracting-out scheme duly certified under any of those Acts;
 - (b) a payment under the Workmen’s Compensation (War Addition) Acts, 1917 and 1919, under the Workmen’s Compensation (Supplementary Allowances) Act, 1940, as amended by the Workmen’s Compensation (Temporary Increases) Act, 1943, or under the Workmen’s Compensation (Supplementation) Act, 1951, shall be treated as a weekly payment by way of workmen’s compensation;
 - (c) the expression “compensation scheme” means a scheme made under the Workmen’s Compensation (Silicosis) Act, 1918 (as originally enacted or as extended by the Workmen’s Compensation (Silicosis) Act, 1924) or section forty-seven of the Workmen’s Compensation Act, 1925 (as originally enacted or as extended by any subsequent enactment);
 - (d) a person shall be deemed entitled to weekly payments by way of workmen’s compensation at any time when he would be so entitled if the amount of any payment, allowance or benefit received by him otherwise than by way of workmen’s compensation were sufficiently reduced;
 - (e) a period shall be treated as considerable if it lasts or can be expected to last for not less than thirteen weeks;
 - (f) the expression “pneumoconiosis” has the meaning assigned to it by subsection (3) of section fifty-seven of the National Insurance (Industrial Injuries) Act, 1946, and, in the case of a person who suffers from pneumoconiosis accompanied by tuberculosis, the effects of

the tuberculosis may be treated as if they were effects of the pneumoconiosis.

(3) A person may be treated for the purposes of this section as being, as a result of an injury or disease or as the joint result of two or more injuries or diseases, incapable of work and likely to remain so incapable for a considerable period notwithstanding that the disability resulting from the injury or disease or, as the case may be, from the injuries or diseases taken together is not such as to prevent him being capable of work, if it is likely to prevent his earnings (as defined by subsection (1) of section eighty-eight of the National Insurance (Industrial Injuries) Act, 1946) exceeding fifty-two pounds in a year.

2.—(1) Subject to the provisions of any regulations made under the following provisions of this Act, a person shall in respect of any period after the appointed day during which he is one to whom this Act applies, be entitled to receive, out of the Industrial Injuries Fund, an allowance at the rate of seventeen shillings and sixpence a week.

Right to, and rate of, allowances under this Act.

(2) In this section the expression "the appointed day" means such day as the Minister may by order (made by statutory instrument) appoint.

3.—(1) The Minister may by regulations make provision—

Ancillary provisions.

(a) with respect to the making of claims for, and awards of, allowances under the last foregoing section and for the determination (either in like manner as if they had arisen under the National Insurance (Industrial Injuries) Act, 1946, or in such other manner as may be prescribed by the regulations) of questions arising on or in connection with any such claims or the payment of any such allowances;

(b) for applying, with or without modification, to such allowances regulations under section twenty-seven of that Act (which relates to administration of benefit) or for making provision corresponding thereto with respect to such allowances;

(c) for requiring persons claiming or receiving such allowances to furnish information and evidence and to undergo medical or other examination and for summoning persons to attend and give evidence or produce documents at any hearing for the purpose of determining any such question as is mentioned in paragraph (a) of this subsection;

(d) for disqualifying persons from receiving such allowances for any period during which they are not ordinarily resident in, or are absent from, Great Britain or are undergoing imprisonment or detention in legal custody,

for suspending payment of such allowances to persons during any such period or pending determination of questions arising with respect to the fulfilment of conditions for the receipt of such allowances under awards or with respect to the revision of awards of such allowances, and for forfeiting allowances or suspending proceedings on claims therefor, or payment thereof, for contravention of, or failure to comply with, provisions of the regulations and in such other circumstances (if any) as may be prescribed by the regulations;

- (e) for requiring the repayment to the Industrial Injuries Fund, in whole or in part, of allowances under the last foregoing section subsequently found not to have been due, for the deduction of any sums so required to be repaid from such allowances or from payments under the National Insurance (Industrial Injuries) Act, 1946, the Workmen's Compensation (Supplementation) Act, 1951, or the Pneumoconiosis and Byssinosis Benefit Act, 1951 (as extended by the Industrial Diseases (Benefit) Act, 1954) and for the deduction from such allowances of any sums which, by virtue of the said Act of 1946 or either of the said Acts of 1951, may be recovered by deduction from a payment under the Act in question;
- (f) for such matters as appear to the Minister to be incidental to, or consequential on, provisions included in the regulations by virtue of the foregoing provisions of this subsection.

(2) The Minister may pay to persons conducting medical or other examinations which persons are required, by virtue of the foregoing subsection, to undergo, such remuneration or allowances as he may, with the consent of the Treasury, determine, and to persons so required to undergo medical or other examination or to attend any hearing such travelling and other allowances (including compensation for loss of remunerative time) as he may, with the consent of the Treasury, determine.

(3) Stamp duty shall not be chargeable upon a draft, order or receipt given in respect of an allowance under the last foregoing section or upon an instrument of appointment, or revocation of appointment, of an agent in connection with business under this Act.

Offences.

4.—(1) If a person, for the purpose of obtaining an allowance or payment under this Act, whether for himself or some other person—

- (a) knowingly makes a false statement or false representation;
or

- (b) produces or furnishes, or causes or knowingly allows to be produced or furnished, any document or information which he knows to be false in a material particular;

he shall be liable, on summary conviction, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

(2) Regulations under the last foregoing section may provide for the recovery on summary conviction of monetary penalties in respect of an offence under this Act consisting in a contravention of, or failure to comply with, a provision of the regulations, so, however, that such penalties shall not exceed ten pounds for each offence or, where the offence consists in continuing any such contravention or failure after conviction thereof, ten pounds together with a further ten pounds for each day on which it is so continued.

(3) Nothing in this section shall be construed as preventing the Minister from recovering by means of civil proceedings any sums due to the Industrial Injuries Fund.

(4) Notwithstanding any provision in any Act prescribing the period within which summary proceedings may be commenced, proceedings for an offence under this Act may be commenced at any time within twelve months after the commission of the offence.

5.—(1) The Minister may, with the consent of the Treasury, make reciprocal arrangements for allowances under section two of this Act to be made in Northern Ireland out of the same fund as allowances under any corresponding legislation of Northern Ireland, and for allowances under any such legislation to be made in Great Britain out of the Industrial Injuries Fund, and for making any necessary financial adjustments between the two funds resulting from the arrangements.

(2) Subsection (1) of the last foregoing section shall apply to allowances out of the Industrial Injuries Fund by virtue of any such arrangements as if they were allowances under this Act.

(3) The Minister may by regulations make provision—

- (a) for requiring that payments made by way of allowances under any corresponding legislation of Northern Ireland shall be treated for the purposes of this Act as having been made thereunder;
- (b) for disqualifying persons from receiving allowances under section two of this Act in cases where they are entitled to receive allowances under any such legislation.

(4) In connection with any such legislation of Northern Ireland, any limitation on the powers of the Parliament of

Northern Ireland imposed by the Government of Ireland Act, 1920, shall not apply in so far as it would preclude that Parliament from enacting a provision corresponding to any of the foregoing provisions of this section.

Application of
enactments.

6. The enactments mentioned in the Schedule to this Act (which respectively relate to the matters referred to in the second column of that Schedule) shall have effect as if references in those enactments to the National Insurance (Industrial Injuries) Act, 1946, included references to this Act and as if references therein to benefit under that Act and to a beneficiary included references respectively to an allowance under section two of this Act and to a person entitled to such an allowance; and any review of, or report on, the operation of that Act made by the Government Actuary or Deputy Government Actuary under section fifty-nine of that Act shall extend also to the operation of this Act during the period covered by the review or report.

Parliamentary
control over
regulations.

7. The powers conferred on the Minister by this Act to make regulations shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Short title.

8. This Act may be cited as the Workmen's Compensation and Benefit (Supplementation) Act, 1956.

SCHEDULE

Section 6.

ENACTMENTS APPLIED

<i>Enactment</i>	<i>Subject Matter</i>
The National Insurance (Industrial Injuries) Act, 1946:	
Subsection (1) of section twenty-eight.	Benefit to be inalienable.
Section sixty	Expenses of Minister and other Government departments.
Section seventy	Civil proceedings to recover sums due to Industrial Injuries Fund.
Subsection (1) of section eighty-six.	Provisions as to powers to make Orders in Council and regulations.
The National Insurance Act, 1946:	
Section forty-eight	Recovery of sums by deduction from benefit.
The National Assistance Act, 1948:	
Section thirteen	Prevention of duplication of payments.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Workmen's Compensation Act, 1906	6 Edw. 7. c. 58.
Workmen's Compensation (Silicosis) Act, 1918...	8 & 9 Geo. 5. c. 14.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Workmen's Compensation (Silicosis) Act, 1924...	14 & 15 Geo. 5. c. 40.
Workmen's Compensation Act, 1925	15 & 16 Geo. 5. c. 84.
Workmen's Compensation (Supplementary Allowances) Act, 1940	3 & 4 Geo. 6. c. 47.
Workmen's Compensation and Benefit (Byssinosis) Act, 1940	3 & 4 Geo. 6. c. 56.
Workmen's Compensation (Temporary Increases) Act, 1943	6 & 7 Geo. 6. c. 49.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Workmen's Compensation (Supplementation) Act, 1951	14 & 15 Geo. 6. c. 22.
Pneumoconiosis and Byssinosis Benefit Act, 1951	15 & 16 Geo. 6. & 1 Eliz. 2. c. 4.
Industrial Diseases (Benefit) Act, 1954	2 & 3 Eliz. 2. c. 16.